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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **OFFICER SANTIAGO MEZA-GONZALEZ #023295, INDIVIDUALLY; OFFICER JOSE MEANO #023054, INDIVIDUALLY; STATE OF CALIFORNIA; AND DOES 1-10, INCLUSIVE,** Defendants.	Case No. 26CV168913 **DEFENDANTS' OPPOSITION TO PLAINTIFF'S MOTION FOR U-VISA CERTIFICATION** Date: June 18, 2026 Time: 2:30 p.m. Dept: 518 Judge: The Honorable Mark Fickes Trial Date: None Set Action Filed: February 4, 2026

MEMORANDUM OF POINTS AND AUTHORITIES

INTRODUCTION

This case involves a search of Plaintiff Brendan Newanforbi's ("Plaintiff") vehicle and the subsequent arrest of Plaintiff for driving under the influence ("DUI"). Plaintiff alleges that the CHP officers began a DUI investigation and arrested Plaintiff for driving under the influence after searching Plaintiff's vehicle without probable cause or a warrant while Plaintiff was resting in his car on the on the side of Interstate 580 East. This action is currently stayed pending the resolution of a substantially identical lawsuit Plaintiff filed in federal Court, *Newanforbi vs Meza-Gonzalez, et al.*, Case No. 2:25-cv-01460-DC-CSK.

Plaintiff now seeks U-Visa certification by characterizing his civil action against Defendants California Highway Patrol ("CHP") and CHP officers Santiago Meza-Gonzalez and Jose Melano (collectively "Defendants") as "cooperation in the detection and investigation of the qualifying criminal activity." (Plaintiff's Motion for Certification 8:17.) This argument is without merit. Plaintiff cannot allege criminal activity in a civil suit and then deem himself helpful to an investigation that does not exist to obtain a U-Visa. As this is a civil action only, Plaintiff's Motion for U-Visa Certification should be denied.

ARGUMENT

PLAINTIFF IS NOT QUALIFIED FOR U-VISA CERTIFICATION AS THE ALLEGATIONS WITHIN HIS COMPLAINT DO NOT EQUATE TO "QUALIFYING CRIMINAL ACTIVITY."

The U-Visa is a visa intended for "victims of certain listed crimes who later help United States law enforcement officials investigate or prosecute those crimes." (*Ordonez Orosco v. Napolitano* (5th Cir. 2010) 598 F.3d 222, 224.). Here, Plaintiff is seeking monetary compensation through a civil suit against the CHP and two of its officers. Plaintiff's request for U-Visa certification based upon his civil case is without merit.

As Plaintiff acknowledges in his Motion for Certification, to qualify for U-Visa certification, an applicant must establish, among other things, that (1) the applicant was a victim of "certain qualifying criminal activity"; (2) the applicant "possesses information concerning the

criminal activity"; and (3) the applicant "has been helpful, is being helpful or is likely to be helpful" to government officials regarding the criminal activity. (8 U.S.C. § 1101(a)(15)(U)(i).) Plaintiff cannot fulfill any of the above criteria as Plaintiff cannot use his civil suit to establish the existence of any criminal activity.

This is a civil action brought by Plaintiff, not a criminal prosecution. No matter what Plaintiff alleges in the Complaint, civil actions do not carry criminal penalties. Even if, *arguendo,* Plaintiff fully prevails on each of his claims, Plaintiff would only be the victim of a civil tort, not a victim of "qualifying criminal activity" within the meaning of the U-Visa statute. Without the existence of any criminal activity, Plaintiff logically cannot establish that he possesses information regarding criminal activity, or that he is helpful to government officials to any criminal investigation as required under the U-Visa statute.

While Plaintiff cites to Title 8 of the Code of Federal Regulations section 214.14 subsection (a) subdivision(14)(ii) to argue that the "absence of criminal charges, or even the refusal by law enforcement to file charges, is not disqualifying," (Motion for Certification 5:11-12), the cited regulation states no such thing. Plaintiff's quoted language does not appear anywhere in regulation. Title 8 of the Code of Federal Regulations section 214.14 subsection (a) subdivision(14)(ii) states in its entirety:

> A petitioner may be considered a victim of witness tampering, obstruction of justice, or perjury, including any attempt, solicitation, or conspiracy to commit one or more of those offenses, if:
>
> > (A) The petitioner has been directly and proximately harmed by the perpetrator of the witness tampering, obstruction of justice, or perjury; and
> >
> > (B) There are reasonable grounds to conclude that the perpetrator committed the witness tampering, obstruction of justice, or perjury offense, at least in principal part, as a means:
> >
> > > (1) To avoid or frustrate efforts to investigate, arrest, prosecute, or otherwise bring to justice the perpetrator for other criminal activity; or

(2) To further the perpetrator's abuse or exploitation of or undue control over the petitioner through manipulation of the legal system.

(8 C.F.R. § 214.14(a)(14)(ii).)

Nothing in the text of Title 8 of the Code of Federal Regulations section 214.14 subsection (a) subdivision(14)(ii) changes the prerequisite for a U-Visa that Plaintiff establishes he is the victim of certain specified criminal offenses. Here, Plaintiff alleges in his civil case that Defendants committed various wrongdoings against him, but Plaintiff's civil allegations are not the same as a criminal prosecution, nor do Plaintiff's allegations of being wrongfully arrested for a DUI rise to the seriousness of a qualifying criminal offense for U-Visa certification, which includes crimes such as murder, rape, and human trafficking. (See 8 U.S.C. § 1101(a)(15)(U).) As a civil lawsuit does not establish the existence of criminal activity, Plaintiff is not qualified for a U-Visa based upon the facts as alleged in his operative Complaint.

CONCLUSION

For the reasons stated above, Defendants respectfully request that the Court deny Plaintiff's Motion for U-Visa Certification in its entirety.

Dated: June 5, 2026

Respectfully submitted,

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ELIZABETH S. ANGRES
Supervising Deputy Attorney General



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DECLARATION OF SERVICE BY E-MAIL

Case Name: Brendan N. Newanforbi v. Officer Santiago Meza-Gonzalez, et al.
Case Number: 26CV168913

Declaration of Electronic Service

1. I am at least 18 years of age and not a party to this matter.

2. I am employed in the Office of the Attorney General of the State of California. My business address is 300 South Spring Street, Suite 1702, Los Angeles, CA 90013-1230, County of Los Angeles.

3. My electronic service address is Diana.Montufar@doj.ca.gov.

4. On June 5, 2026, I electronically served the following document[s]:

    a. **DEFENDANTS' OPPOSITION TO PLAINTIFF'S MOTION FOR U-VISA CERTIFICATION**

5. I electronically served the aforementioned document[s] by emailing them to the following individual[s]:

Brendan Ngehsi Newanforbi
E-mail Address: BNN.CDL@gmail.com
Plaintiff In Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing is true and correct, and that this declaration was executed on June 5, 2026.

Diana Montufar	/s/ Diana Montufar
Declarant	Signature

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